

25VECV02256 25VECV02256

County: los-angeles

Division: Civil Law and Motion

Department: T

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25VECV02256 Carter v VW

The court finds the court ordered responses to be Code compliant. However, defendant has made production of the documents subject to a protective order that was never requested of the court. A motion for protective order should have been filed prior to the first set of responses. The obligation to obtain the protective order was on defendant. Defendant has been in the case for over one year and never asked for the protective order.

Because the court was required to order defendant to serve Code compliant responses, and because of its continuing refusal to produce documents despite not asking the court for a protective order, the court finds discovery abuse without substantial justification. Defendant has caused unnecessary delay in this case. The court orders monetary sanctions against defendant Volkswagen Group of America, Inc. pursuant to California Code of Civil Procedure §§ 2023.050, 2023.010, 2031.300 and 2031.310 in the sum \$4,500 payable to the Client Trust Account of plaintiff counsel by 9/11/2026.

The court notes this is one of the largest sanction awards issued by this department this year in any case. The fact that VW knew it would want a protective order and never obtained it by filing a motion is absolutely discovery abuse.

All untimely objections to the discovery requests are stricken.

IT IS SO ORDERED. CLERK TO GIVE NOTICE.